

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

No-Transcript Statement and Record Designation

Civil Action No. SYN-NDWV-25-CV-0618 Fourth Circuit No. SYN-CA4-26-CV-4102 District
ECF No. 64 — Filed March 16, 2026

Appellant Asterglen Freight Software, Inc. states under Federal Rule of Appellate Procedure 10(b) that it will not order a transcript for this appeal. The motions resulting in the January 12, 2026 summary-judgment ruling and the February 4, 2026 Rule 54(b) order were submitted and decided on written papers. No evidentiary hearing, oral summary-judgment hearing, or oral Rule 54(b) hearing occurred, and no transcript of those matters exists.

Asterglen has reviewed the district docket through March 16, 2026. It does not identify a pretrial conference, discovery conference, or other recorded proceeding as necessary to the issues designated in the Notice of Appeal. This statement does not imply that an unrecorded factual assertion occurred in court, and it does not seek to supplement the written record with counsel's recollection.

If the district clerk or the court of appeals identifies a recorded proceeding not reflected in the current docket, Asterglen will respond to a lawful direction concerning that proceeding. On the information presently available, the appellate record can be completed from the filed papers, admitted exhibits, orders, partial judgment, notice, and certified docket. No cost estimate or transcript deposit is therefore requested.

Designation of written record

Asterglen designates the Complaint and Pilot License; Copper's answer, defenses, and amended counterclaim; Meridian's answer; the parties' operative responses to the counterclaim; and the papers and exhibits concerning the BeaconRoute deployment. The designated exhibits include the June 3 proposed change order, June 10 written conditions, Meridian's June 14 statement of work, the provisioning ledger, July 8 communications, July 18 audit, July 22 termination and demand, and the cure-status communications through July 25.

Asterglen also designates the written discovery and testimony materials filed with the summary-judgment papers, including the authenticated responses, deposition excerpts, cure-feasibility declaration and tests, and damages or offset declaration. It designates Copper's motion and memorandum for partial summary judgment, the statement of undisputed material facts, Asterglen's opposition, Meridian's response, Copper's reply, and every admitted attachment to those papers.

Finally, Asterglen designates the January 12 memorandum opinion and order, its January 20 Rule 54(b) motion, Defendants' January 30 opposition, Asterglen's February 2 reply, the February 4 order, the separate partial judgment, the March 3 Notice of Appeal, and the certified docket. This designation describes the record; it does not ask the clerk to include material that was never filed or admitted below.

Record boundaries and service

The designated record concerns the dismissal of Count I and the jurisdictional effect of the February 4 papers. Count II against Meridian and Copper's amended counterclaim remain pending. Their unresolved status is part of the record relevant to appellate jurisdiction, but this designation does not ask the Fourth Circuit to decide their merits. Materials concerning those claims are included only when they were filed below and bear on claim relationship, factual overlap, damages, or possible setoff.

Asterglen asks the district clerk to assemble and transmit the record in the ordinary manner after confirming that the docket accurately identifies each paper and attachment. No sealed document is designated by this statement. If any item requires restricted handling under an existing order, the parties will comply with the applicable procedure rather than reproduce it in an unrestricted filing.

Respectfully submitted on March 16, 2026, Counsel for Asterglen Freight Software, Inc.

I certify that this No-Transcript Statement and Record Designation was filed through the district court's electronic filing system on March 16, 2026. Electronic notice was transmitted to counsel of record for Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC. A copy also may be associated with Fourth Circuit No. SYN-CA4-26-CV-4102 for record administration. Nothing in this statement changes any party's right to object to the contents or accuracy of the record.